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National Commission on Women



Recommendations by the National Commission on Women to Strengthen the Draft Prevention of Domestic Violence Bill

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1. SECTION 2: AN AGGRIEVED PERSON TO MAKE AN APPLICATION

1.1 Section 2(2)(c)

Current Text: "by ascendent, descendent or collateral relative within the fourth civil degree of consanguinity or affinity;"

Recommended Amendment: add the words "with the written consent of the aggrieved person, except where the aggrieved person is a minor" after the word affinity.

Rationale: It is important for the aggrieved person to have control and decision making over legal processes initiated on their behalf.

1.2 Section 2(2)(e)

Current Text: "by any public officer upon whom a duty has been imposed towards the well-being of the aggrieved person; or"

Recommended Amendment: Delete this subsection entirely.

Rationale: Currently only the police are empowered to initiate legal proceedings in terms of this and are required to have the capacity and skill to do so. Opening up the categories of persons who can complain to court may not be an efficient step. It may be better to direct public officers to report domestic violence to the police for appropriate measures to be taken. It would be useful to see if there is any data from such public officers that provide evidence that complaints are being received and that this avenue of complaint making and taking of legal action is necessary. Without such evidence it would be difficult to justify this empowerment especially in an institutional culture that has also taken decisions that are detrimental to parents viz a vis children or have in some instances favoured the perpetrator of violence.

2. SECTION 4: CONSIDERATIONS BY COURT

2.1 Section 4(2)(c) - Procedure for issue or refusal of an Interim Protection Order

Current Text: "the need to ensure the protection of the aggrieved person and the dependents of the aggrieved person from any undue hardship as a result of the domestic violence"

Recommended Amendment: to replace the current text with the following "the need to ensure the protection of the aggrieved person from undue hardship as a result of the domestic violence"

Rationale: It is important that focus of the interim protection order be the aggrieved person. The existing wording creates another category of persons interests that have to be given equal consideration. It will become possible for the Respondent to argue that a competing interest of a dependent negates the interest of the aggrieved person.

2.2 Section 4(3) – Issuing of interim order to the respondent

Current Text: mandates issuance of notice to the respondent, and copy of the interim order “to the Officer in charge of the police station within whose area or authority the respondent or the aggrieved person resides”

Recommended Amendment:

- a. Change "or the aggrieved person" to "and the aggrieved person" in the final line.
- b. Add the words ‘provided that in urgent situations interim orders may be conveyed to the Officer in Charge of the relevant police station by any expeditious means of communication available to court’.

Rationale: Ensures that in the event two police stations are involved, both stations are notified of the operation of an interim protection order, so that they may respond appropriately, permit complaints of breaches of the interim order and provide appropriate support if needed.

3. SECTION 6: INQUIRY PROVISIONS

3.1 Section 6(2) and 6(2)(b)

Current Text: “Where the respondent is not represented by a legal representative, the court may on its own motion or on the request of the aggrieved person, order”

Recommended Amendment: Delete the words “where the respondent is not represented by a legal representative”

3.2 Section 6(2)(b)

Current Text: “the respondent to state the questions to court so as to enable the court to repeat the question accurately to the aggrieved person or the witnesses.”

Recommended Amendment: Add the words “or their legal representative” so it reads as follows: “the respondent **or their legal representative** state questions to court so as to enable the court to repeat the question to the aggrieved person or the witnesses.”

Rationale for both Amendments above: In view of the adversarial nature of proceedings currently adopted in domestic violence inquiries, and the opportunity for re-traumatization of victims in the process of cross examinations, it is recommended that the Court have the power, upon the request of the aggrieved person, **whether the respondent is represented or not** to make order that (a) the examination of the witness including the aggrieved person shall not be conducted by the respondent; and (b) the respondent **or their legal representative** state questions to court so as to enable the court to repeat the question to the aggrieved person or the witnesses.

4. SECTION 8: TERMS AND CONDITIONS

4.1 Section 8(d)

Current Text: “the need to ensure the safety, welfare and the best interests of the children.”

Recommendation: It is recommended that Section 8(d) be deleted.

Rationale: Suggest deleting this given the broad language which will no doubt be subject to interpretations influenced by subjective views which may include gender stereotypes and social expectations which could negatively impact the aggrieved person. While the ‘best interests of the children’ is valid, that too should be removed as it can be open to wide interpretation in considering the determination of a Protection Order. The court, as the upper guardian of children, will naturally look into the best interests of the child and if this is to be included in the Act, it should be included as a separate section with directives the court can make to ensure the safety and welfare of the child.

5. SECTION 9: NOTICE

5.1 Section 9(b)

Recommendation: Add Section 9(b)(iv) – “Divisional Secretariat in charge of the area in which the Applicant resides.

Rationale: Copies of Protection Orders should be automatically also sent to the relevant Divisional Secretariat to enable resource coordination for the Applicant. The Divisional Secretariat should play a formally mandated coordinating services role.

6. SECTION 11: CONSENT AND COERCION

6.1. Section 11(3) Considerations to be taken into account when granting Interim Orders to Protection Orders.

Current Text: "...as the court may deem necessary to protect and provide for the safety of the aggrieved person or dependents of the aggrieved person or members of the household, with the consent of the aggrieved person to such relief"

Recommended Amendment: delete the words "or dependents of the aggrieved person or members of the household, with the consent of the aggrieved person to such relief".

Rationale: It is important that focus of the interim protection order be the aggrieved person. The existing wording creates categories of other persons' interests that may be given equal consideration and it is necessary to clearly state whose interest guide the attention of court. The additional requirement of consent before granting of relief is usual. Retaking consent negates the fact that the aggrieved person consented/decided in the first instance to initiate legal proceedings, it also places the aggrieved person to re-state consent in the presence of the respondent and also re-arranges the dynamics of the application which ideally is about placing court in between the aggrieved person and the respondent. The current formulation by retaking consent places the aggrieved person as directly taking on the respondent and creates opportunity for respondent to intimidate/coerce the aggrieved person, prior to orders being granted, to withdraw consent.

7. NEW PROVISIONS FOR DATA COLLECTION AND MONITORING

Proposed New Section to be added as Section 25 (Sections 25 onwards to be renumbered accordingly): Annual Reports on Domestic Violence

(NEW) Section 25 – Annual Reports on Domestic Violence

(1) Every year, before the 31st of March, **the Inspector General of Police** must publish a report relating to the following:

(a) The number of complaints on domestic violence reported to the police during the previous year disaggregated by police station, district, and sex and age of aggrieved

persons and the action taken by the police to these complaints including provision or support and initiating legal proceedings under the Act or any criminal law;

(b) The number of breaches of protection orders or interim protection orders reported to the police during the previous year disaggregated by police station, district, and sex and age of aggrieved persons, and the responses of the police to these breaches;

(c) The steps taken within the police force, national and provincial, to spread awareness on the provisions of this Act;

(2) Every year, before the 31st of March, **the Minister in charge of the subject of justice** shall publish a report which includes:

(a) The number of complaints on domestic violence reported to courts during the previous year giving disaggregated data including by district, court, sex and age of aggrieved parties and sex and age of respondents and the number of interim orders and protection orders granted by courts;

(b) The number of breaches of protection orders or interim protection orders reported to courts, and the responses of courts;

(3) Every year, before the 31st of March, the **National Commission on Women** shall publish a report which includes:

(a) All measures taken to ensure effective implementation of the Act

(b) Provision of support to aggrieved persons disaggregated by sex, age, district, nature of support provided, and cost of support

(c) The steps taken at national and provincial levels to spread awareness on the provisions of this Act;

(4) All such reports shall be submitted before the 31st of March each year to Parliament and:

(a) The Human Rights Commission of Sri Lanka

(b) The National Commission on Women

(c) The National Child Protection Authority

(d) Any other national or provincial body that may be created to protect and promote human rights, the rights of women, or the rights of children

(5) Every person shall be entitled to purchase a copy of such a report or access such a report online

Rationale: This provision ensures transparency, accountability, and paves the way for evidence-based policy development through systematic data collection and public reporting.

8. SECTION 27: INTERPRETATION

➤ “act of domestic violence”

1. Amend typo “economical” with “economic”
2. **Sub Section (a), (b), (c):** Consider adding the words “including acts committed by use of electronic devices or online platforms” to the offences described in the Penal Code.
3. **Sub Section (d):** Replace words therein with “arbitrary deprivation of liberty or freedom of movement”
4. **Sub Section (f):** Delete “or restricting the aggrieved person's freedom of movement” (to avoid duplication with Sub Section (d) above)
5. **Sub Section (g)(i):** Replace the word ‘custody’ with ‘access’ so it reads as follows: “depriving the aggrieved person of **access** to her or his family”.
6. **Sub Section (j)(v):** Add the words “sexual orientation and gender identity” to the interpretation of mental and emotional harm as follows:
“verbal harm or conduct directed at the aggrieved person's sexual or bodily integrity, **sexual orientation and/or gender identity;**” or

➤ “economical harm”

1. Amend typo “economical harm” with “economic harm”
2. Delete the words “acts that make the aggrieved person financially dependent”
Rationale: by placing the condition 'make the aggrieved person financially dependent' it introduces a high threshold. Even if it doesn't make a woman dependent, if it is merely taking her money or property or causing her to lose her right to gifts from her parents - these acts should also amount to economic harm.
3. **Sub Section (a):** delete the words “except in case wherein the other spouse or partner objects on valid, serious and moral grounds”
4. **Sub Section (b):** replace typos in existing text as follows: “deprivation or threat of deprivation of financial resources and **the right to use and enjoy the** conjugal, community, or property owned in common”

➤ “emotional harm”

1. The definition focuses on the nature of the acts and is diluted by the use of the words “serious nature” which gives the impression that cruel, inhuman, degrading or humiliating conduct of not ‘serious nature’ is acceptable.
2. Consider either deleting the words “serious nature” or for greater clarity that focusses also on the impact on the aggrieved person, adopting the following definition:

“Emotional harm” means a pattern of conduct, verbal or non-verbal, that is intended to cause or causes psychological distress or mental anguish to the aggrieved person, is intended to or

undermines the aggrieved person's self-worth or dignity, threats, humiliating or degrading treatment that is intended to cause or causes fear or anxiety to the aggrieved person or involves control, isolation or coercion of the aggrieved person.

➤ **“harassment”**

1. Amend **Sub Section (d)** – add the words ‘cyberstalking’ and ‘videos’ – “threatening, intimidating **or cyberstalking** , causing alarm to the aggrieved person by technology facilitated means including email, text messages, instant messages or by posting unflattering false or malicious assertions, information or photos **and / or videos** to any website, social media platforms or other similar online forums with the intention of causing embarrassment or humiliation of the aggrieved person”

➤ **“physical harm”**

1. The use of the word “damage” is not correct. ‘Damage’ connotes lowering of value or usefulness or an impairment of physical condition. The word “harm” would be the better word to use for this definition.
2. Consider replacing the existing definition with the following:

“Physical harm” means actual or attempted bodily injury, harm to health or forcible restraint of the aggrieved person.

➤ **“sexual harm”**

1. It is respectfully noted that the language describing sexual harm is out of date, as terms of “lasciviousness” and “sex object or prostitute” are not considered plain, clear, legal language of current usage.
2. Consider the following definition or a version thereof:

“sexual harm” means any conduct of a sexual nature committed without the free and informed consent of the aggrieved person, or where consent cannot be given due to age, mental incapacity, intoxication, or coercion, and includes –

- (a) sexual violence, sexual assault or unwanted sexual touching;
- (b) forcing or coercing the aggrieved person into sex work or commercial sexual exploitation;
- (c) forcing the aggrieved person to view pornographic material against their will;
- (d) forcing the aggrieved person to participate in unwanted sexual activities for the purpose of humiliation;
- (e) controlling access to sexual and reproductive health services;